

Failure to timely respond to requests for admissions results in a waiver of all objections to the requests, and upon proper motion the court *shall* deem them admitted. (Code Civ. Proc., § 2033.280.) The statutory language leaves no room for discretion. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 828.) However, the court may relieve the party who fails to file a timely response if, before entry of the order deeming the requested matters admitted, the party in default 1) moves for relief from waiver and shows that the failure to serve a timely response was due to “mistake, inadvertence or excusable neglect; and 2) the party has served a response in “substantial compliance with Code of Civil Procedure Section 2033.220. (Code Civ. Proc., § 2033.280(a)-(c); see *Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1584.) Here, no responses have been received to date.

Sanctions

Regarding the interrogatories, where a party seeks monetary sanctions, the court “shall” impose such a sanction against the unsuccessful party, unless the court finds that party acted with substantial justification or other circumstances would render such sanctions as unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are mandatory against a party whose failure to respond timely necessitates a motion to deem admitted. (Code Civ. Proc., § 2033.280, subd. (c).) Pursuant to California Rules of Court, Rule 3.1030(a), this also applies where no opposition to the motion was filed. The court finds it reasonable to order monetary sanctions in the reduced amount of \$645, to include 1.5 hours at \$350 per hour in preparing the motions and \$120 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/22/2026.
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: ***Jesus Navarro v. Jacobo Farm Services, Inc.***
Superior Court Case No. 24CECG04061

Hearing Date: September 24, 2026 (Dept. 503)

Motion: by Plaintiff for Preliminary Approval

Tentative Ruling:

To deny, without prejudice.

Explanation:

The court intends to deny without prejudice the motion for preliminary approval of the class action settlement. No class has been certified in this action, and plaintiff does not request certification of a provisional settlement class in connection with the present motion. Where settlement occurs before certification, certification and settlement approval may occur simultaneously. (*Luckey v. Superior Court* (2014) 228 Cal.App.4th 81, 93.)

Plaintiff Jesus Navarro ("plaintiff") filed his putative class action on behalf of himself and of a class of similarly situated individuals, alleging multiple wage and hour violations. However, a review of the procedural history of this action and of the declaration of Stan Mallison in support of this motion reveals that the court has not entered an order certifying a class. While the absence of an earlier certification order itself is not fatal, no request to simultaneously certify a class has been made with this motion for preliminary approval.

California Rules of Court rule 3.769(d) permits the court to certify a provisional settlement class in conjunction with preliminary approval, but the rule does not eliminate the requirement that certification be supported by the requisite showing. The burden of establishing the propriety of class treatment rests with the party seeking certification. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326.) Plaintiff bears the burden of establishing the propriety of class treatment with admissible evidence. (*Richmond v. Dart Industries, Inc.* (1981) 29 Cal.3d 462, 470 [trial court's ruling on certification supported by substantial evidence generally not disturbed on appeal]; *Lockheed Martin Corp. v. Superior Court* (2004) 29 Cal.4th 1096, 1107-1108 [plaintiff's burden to produce substantial evidence].)

Here, plaintiff has not requested class certification, either prior to the settlement or simultaneously with this motion. Plaintiff has not satisfied his burden to establish the class for certification, as no admissible evidence establishing the propriety of class treatment has been submitted. Accordingly, the court lacks an adequate basis on the present motion to make any independent certification determination as contemplated by rule 3.769(d).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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